

25SMCV00160 25SMCV00160

County: los-angeles

Division: Civil Law and Motion

Department: 205

Hearing date: 2026-08-19

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=BH%20%2C205%2C08%2F19%2F2026

Source SHA-256: de362c8bcd5e0d72fe42ccbc87139adb80216f5295f97a9d8c9a0d5de4f39cc6

Case Number: 25SMCV00160 Hearing Date: August 19, 2026 Dept: 205

HEARING DATE: August 19, 2026

JUDGE/DEPT: Moreton/Beverly Hills, 205

CASE NAME: George Hysmith v. Miniya Iman Collins, et al.

CASE NUMBER: 25SMCV00160

COMP. FILED: January 14, 2025

PROCEEDINGS: REQUEST FOR ENTRY OF DEFAULT JUDGMENT

MOVING PARTY: George Hysmith

RESPONDING PARTY: Miniya Iman Collins

BACKGROUND

This case arises from a car crash. Defendant was driving drunk when her jeep collided with Plaintiff's car, causing serious injuries to Plaintiff including to his head, legs, back and shoulders.

On January 14, 2025, Plaintiff filed a Complaint, which he subsequently amended. The operative first amended complaint (FAC) alleges claims for (1) negligence, (2) motor vehicle negligence, and (3) gross negligence. The Complaint sought unspecified general damages and punitive damages. Plaintiff subsequently filed and served a statement of damages seeking \$1 million in general damages, \$1 million in special damages, and \$1 million in punitive damages.

Plaintiff personally served Defendant with the summons and FAC on April 17, 2025 and with the statement of damages on July 22, 2025. Defendant did not respond. On July 29, 2025, following Plaintiff's filing of a Request for Entry of Default, the Clerk of the Court entered default against Defendant. This hearing is on Plaintiff's request for entry of default judgment.

REQUEST FOR RELIEF

Default judgment against Defendant for a total of \$6,153,169.28, which is comprised of: (1) \$1 million in general damages, (2) \$1 million in special damages, (3) \$4 million in punitive damages, (4) \$150,000 in interest and (5) \$3,169.28 in costs.

ANALYSIS

Plaintiff has not submitted evidence in support of his claim for general and special damages. Plaintiff submits only the declaration of his counsel who could not possibly have personal knowledge of the amount of Plaintiff's damages. The declaration does not even attach any medical bills or any support for future medical expenses.

Moreover, in order to obtain punitive damages, Plaintiff must present clear and convincing evidence of malice, oppression and fraud. Plaintiff has not submitted any such evidence. Counsel attests that Defendant was driving drunk when she struck Plaintiff. Again, counsel would have no personal knowledge of this fact. Counsel refers to a traffic-collision report and related criminal proceedings which he claims confirm that Defendant was intoxicated at the scene and was arrested for violation of Vehicle Code § 23152. But no supporting documents are attached.

Further, to obtain punitive damages, Plaintiff must submit evidence of Defendant's net worth to ensure that the amount of the punitive damages award is not excessive in light of Defendant's ability to pay. (Adams v. Murakami (1991) 54 Cal.3d 105, 110-12.) Plaintiff has submitted no evidence of Defendant's net worth.

Additionally, Plaintiff seeks \$4 million in punitive damages, although the statement of damages he personally served on Defendant only seeks \$1 million in punitive damages. The Court cannot award damages in excess of that set forth in a statement of damages. A default judgment which awards relief in excess of that requested in the complaint or, if it is a personal injury action, in the statement of damages, is in excess of jurisdiction. (Swycaffer v. Swycaffer (1955) 44 Cal.2d 689, 693.)

CONCLUSION AND ORDER

For the foregoing reasons, Plaintiff's Request for Default Judgment is DENIED. The Order to Show cause is continued to December 10, 2026 at 8:30 a.m.